

STATE OF NEW YORK

6568--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 6, 2025

Introduced by M. of A. BARRETT, BEEPHAN, LUNSFORD -- read once and referred to the Committee on Economic Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to requiring mandatory background checks for persons employed by certain businesses serving minors and prohibiting certain persons from owning such businesses

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The general business law is amended by adding a new section 398-h to read as follows:

§ 398-h. Background check requirements for youth service providers. 1. As used in this section:

(a) (i) "Youth service provider" means any of the following businesses, organizations, or entities that regularly provide instructional, recreational or extracurricular services to minors, including but not limited to:

(A) dance, gymnastics, music, or performing arts studios or schools;

(B) martial arts academies;

(C) sports training facilities; or

(D) tutoring or academic enrichment centers.

(ii) "Youth service provider facility" shall not include any public or private school subject to the provisions of the education law or any day care center subject to the provisions of article six of the social services law.

(b) "Covered person" means an operator, employee, volunteer, or independent contractor, who has direct responsibility for the supervision, instruction, care, or safety of minors and has contact with minors through a youth service provider facility.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (c) "Minor child" or "minor" means a child under the age of eighteen
2 years.

3 2. Notwithstanding any other provision of law to the contrary, and
4 subject to rules and regulations of the division of criminal justice
5 services, the following background checks shall be conducted by youth
6 service providers for covered persons at the time and in the manner
7 required by this section:

8 (a) a search of the New York state sex offender registry;

9 (b) a search of any state sex offender registry or repository in each
10 state other than New York where such person resides or resided during
11 the preceding five years, if applicable unless such state's sex offender
12 registry information will be provided as part of the clearance conducted
13 pursuant to paragraph (c) of this subdivision; and

14 (c) a search of the United States department of justice national sex
15 offender public website.

16 3. A covered person must undergo a background check as described in
17 subdivision two of this section:

18 (a) before being employed at, volunteering at, contracted by, or oper-
19 ating a youth service provider; and

20 (b) at least once every three years during such employment, volunteer-
21 ing, contracting, or operating at the youth service provider facility.

22 4. Notwithstanding any other provision of law to the contrary, a
23 covered person shall be deemed disqualified from employment, volunteer-
24 ing, or contracting at a youth service provider facility if such person,
25 either before or during employment:

26 (a) refuses to consent to the background check described in subdivi-
27 sion two of this section;

28 (b) knowingly makes a materially false statement in connection with
29 such background check; or

30 (c) is registered, or is required to be registered, on a state sex
31 offender registry or repository or the United States department of
32 justice national sex offender registry.

33 5. No person who is registered, or is required to be registered, on a
34 sex offender registry pursuant to paragraph (c) of subdivision four of
35 this section shall own or operate a youth service provider facility. For
36 purposes of this subdivision, ownership shall mean having a controlling
37 interest in the youth service provider facility.

38 6. The provisions of this section shall not apply to any person
39 rendering emergency services at the youth service provider facility.

40 7. (a) A violation of the provisions of this section shall be punisha-
41 ble by a civil penalty of not more than twenty-five thousand dollars per
42 violation recoverable in an action by the attorney general in the name
43 of the people of the state or by the corporation counsel for any city or
44 by the appropriate attorney of any other political subdivision as shall
45 be designated by the governing body of such political subdivision. Any
46 civil penalty recovered shall accrue to the jurisdiction which brought
47 the action.

48 (b) A youth service provider or owner that fails to comply with the
49 background check requirements of this section or knowingly employing or
50 contracting with an individual or volunteer disqualified under subdivi-
51 sion four of this section shall be subject to suspension or revocation
52 of any license or permit to operate the youth service provider facility
53 where the violation occurred.

54 (c) The attorney general or the district attorney of any county may
55 bring an action in the name of the people of the state to restrain or

1 prevent any violation of this article or any continuance of any such
2 violation.

3 § 2. The division of criminal justice services shall promulgate and
4 enforce any rules and regulations necessary for the implementation of
5 this act.

6 § 3. Severability. If any clause, sentence, paragraph, subdivision,
7 section or part of this act shall be adjudged by any court of competent
8 jurisdiction to be invalid, such judgment shall not affect, impair, or
9 invalidate the remainder thereof, but shall be confined in its operation
10 to the clause, sentence, paragraph, subdivision, section or part thereof
11 directly involved in the controversy in which such judgment shall have
12 been rendered. It is hereby declared to be the intent of the legislature
13 that this act would have been enacted even if such invalid provisions
14 had not been included herein.

15 § 4. This act shall take effect on the one hundred eightieth day after
16 it shall have become a law. Effective immediately, the addition, amend-
17 ment and/or repeal of any rule or regulation necessary for the implemen-
18 tation of this act on its effective date are authorized to be made and
19 completed on or before such effective date.